

File No.: EXP202202963

RESOLUTION OF THE APPEAL FOR RECONSIDERATION

Examined the appeal for reconsideration filed by A.A.A. (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated January 5, 2023, and based on the following:

FACTS

FIRST: On February 11, 2022, a complaint was received by the Spanish Agency for Data Protection (hereinafter, AEPD), filed by B.B.B. regarding A.A.A.

SECOND: On January 5, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection, in file EXP202202963. The resolution was notified to the appellant on January 9, 2023, as evidenced in the file.

THIRD: On February 14, 2023, an appeal for reconsideration was registered at the AEPD filed by the appellant against the resolution indicated in the previous point, in which they express their disagreement with it.

The following legal grounds apply to the aforementioned facts:

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

Article 116 of the LPACAP establishes in its section d) as a ground for inadmissibility of administrative appeals "Having exceeded the deadline for filing the appeal."

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III

Calculation of the filing period

According to the provisions of Article 124 of the LPACAP: "The period for filing the appeal for reconsideration shall be one month, if the act is express."

Article 119 of this law adds that: "The resolution of the appeal will either fully or partially uphold or dismiss the claims made therein or declare its inadmissibility."

Regarding the calculation of the specified period, it must be attended to as provided in section 4 of Article 30 of the LPACAP, which states: "If the period is set in months or years, these will be calculated from the day following the notification or publication of the act in question, or from the day following the occurrence of the estimation or dismissal by administrative silence.

The period will conclude on the same day on which the notification, publication, or administrative silence occurred in the month or year of expiration. If in the month of expiration there is no equivalent day to that on which the calculation begins, it will be understood that the period expires on the last day of the month."

In this case, the resolution of the Director of the Spanish Agency for Data Protection dated January 5, 2023, was notified to the appellant on January 9, 2023, and the appeal for reconsideration was submitted at a post office on February 10, 2023, being received by this Agency on February 14, 2023. Therefore, it can be concluded that the filing of the appeal for reconsideration on the indicated date exceeds the legally established filing period, and thus the appeal should be declared inadmissible for

being out of time.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE INADMISSIBLE the appeal for reconsideration filed by A.A.A. against the resolution of this Agency, issued on January 5, 2023, in file EXP202202963.

SECOND: TO NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned Law.

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Mar España Martí

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